TOWN OF DAVIE
Community Redevelopment Agency Board
Meeting Minutes

Wednesday, January 15, 2025, at 6:00 p.m.

I. PLEDGE OF ALLEGIANCE

The meeting was called to order at 6:00 p.m.

II. ROLL CALL

Present at the CRA meeting were Vice-Chair Luis, Board Members Hattan, Whitman and Starkey. Chair Paul arrived at 6:10 p.m. Also, present were CRA Executive Director/Town Administrator Lemack, CRA Director/Assistant Town Administrator Holste, CRA Attorney Weinthal, Economic Development Manager Thomas, Program Manager Ellett, and Board Secretary Brewster.

Vice Chair Luis asked for Item #2 to be pulled as Assistant Town Administrator/CRA Director Holste was going to make a presentation. There were no objections.

III. PRESENTATION – CRA EXTENSION PRESENTATION, BY ASSISTANT TOWN ADMINISTRATOR/CRA DIRECTOR HOLSTE

Assistant Town Administrator/CRA Director Holste mentioned that over the past couple of years, the Davie CRA and the Town of Davie have been working on extending the CRA term through 2039, the statutory permitted time for the CRA. This proposed extension required extensive dialogue with Broward County which has resulted in an interlocal agreement between the Davie CRA, Town of Davie, and Broward County.

The agreement accomplishes two significant goals. It allows the Davie CRA to continue another 12 years through 2039 and enables the Davie CRA and Town to address a Town and County wide need, affordable housing.

Director Holste thanked the Board of the Davie Community Redevelopment Agency and Davie Town Council for providing their guidance and support throughout the process. He also recognized the Town's team that brought this ILA to fruition – Mr. Lemack, Mr. Weinthal, Mr. Sherwin, Mrs. Ellett and Mrs. Thomas. He also acknowledged and thanked Broward County including Senator Geller, County Administrator Monica Cepero, Housing Finance Director Ralph Stone, County Attorney Andrew Meyers, and Assistant County Attorney Rene Harrod.

Director Holste mentioned the Town, Davie CRA and Broward County held productive discussions regarding the extension of the Davie CRA resulting in the interlocal agreement that includes the following terms:

- Extend the Davie CRA through FY2039; we have less than three (3) years remaining under the current CRA term and this extension would add another twelve (12) years to the CRA term.
- As part of the CRA extension, the Davie CRA would receive tax increment financing revenue from the Town of Davie only starting in FY2028 through FY2039 (12 years) at the Town's discretion.
- The Davie CRA will no longer receive TIF funding from Broward County, Central Broward Water Control District (CBWCD), South Broward Hospital District (SBHD), North Broward Hospital District (NBHD) and Children's Services Council (CSC).
- Finally, a proposed settlement has been reached with Broward County Administration regarding County tax increment financing. Starting in FY2028, the Davie CRA would not receive County tax increment financing; however, Broward County would pay to the Town the amount of $18.56 million over eight (8) year period or annual installments of $2.32 million starting in FY2028. These funds must be spent on affordable housing projects; however, this funding is not limited to the CRA only but can be spent townwide.

Mr. Holste shared a passage from the County's 10-Year Affordable Housing Master Plan:

"The Needs Assessment found Broward County's economic competitiveness, resilience and quality of life are at risk. Unless affirmative affordable housing measures are enacted, there will be severe effects on the county's leading employment sectors – leisure and hospitality, healthcare, and retail reliant on service sector workers along with major institutions – hospitals, public schools, colleges, and universities."

The Needs Assessment measured the level of affordable housing demand and distress in the county and found that the housing crisis became more pervasive since the COVID pandemic. The Assessment found that Davie has an Affordable Homeowner Supply Gap of 4,644 units and an Affordable Rental Supply Gap of 3,696 units.

The County funding for Affordable Housing must be spent on programs such as:

- Rehabilitating a residential property, subject to restrictive covenants requiring that the affordability of the residential units be maintained for a period of at least ten (10) years for owner-occupied housing.
- First-time homebuyer assistance programs, subject to restrictive covenants requiring that the affordability of the residential units be maintained for a period of at least fifteen (15) years.
- Affordable Housing Projects Infrastructure - Actual expenses for planning, designing, or implementing horizontal infrastructure (i.e., drainage, wastewater, water supply, solid waste, lighting, paving, bridges, roadways, canals, or transportation) in conjunction with affordable housing projects.

- Gap financing for new construction or acquisition/rehabilitation of affordable multi-family rental or purchasable units subject to restrictive covenants requiring that the affordability of the residential units be maintained for a period of at least thirty (30) years.
- Other affordable housing programs approved in writing by the County Administrator, which approval shall not be unreasonably withheld.

The County's contribution to the Town for affordable housing will be obligated on an annual basis as Florida Statutes 129 prevents the County from committing funds beyond an annual budget year. The County Administrator is committed to make their best efforts to obligate the funds annually each year by the Agreement. We believe this commitment will be fulfilled as the County is funding its affordable housing commitments through the TIF of expiring CRAs. (Chair Paul arrived)

If the County is unable to make all or a portion of a particular year's contribution, it will be due on or before December 1 of the subsequent fiscal year.

The Davie CRA will continue to have its annual reporting requirements established in Florida Statutes; however, the Town will be required to submit an annual report to Broward County detailing the expenditure of the County's Contributions towards town-wide affordable housing programs. Starting December 31, 2028, and each succeeding December 31 until the expenditure of all County Contributions. This reporting is required until the County Contributions are fully expended. This reporting includes the County Contribution program balance; Affordable Housing Programs utilized and Projects that received funding.

The next step regarding the ILA is that upon the Davie CRA and Town of Davie approval, Broward County is anticipated to consider and approve the ILA in February 2025. At that time, the Davie CRA and Town will need to amend the CRA Redevelopment Plan within 180 days of full ILA execution.

This process includes:

- CRA approval of Redevelopment Plan modifications and submittal to Local Planning Agency.
- Local Planning Agency (P&Z Board) review and recommendations. LPA reviews for compliance with the Town's comprehensive plan.
- CRA approval of Redevelopment Plan modifications.
- Town Council Public Hearing on Redevelopment Plan modifications
    - Public Notice and separate Notice to each Taxing Authority.
- Town Council approval of two (2) Resolutions:
    - Adopting Redevelopment Plan Modifications
    - Extending CRA expiration date to 2039

We will be working to adopt the revised Redevelopment Plan by June 2025. Director Holste thanked everyone for their time and asked if anyone had any questions.

Board Member Starkey questioned the various types of improvements that CRA could use the funds for from Broward County. Mr. Holste mentioned it was covered in the third item. Funds could be used for actual expenses for planning, designing, or implementing horizontal infrastructure (i.e., drainage, wastewater, water supply, solid waste, lighting, paving, bridges, roadways, canals, or transportation) in conjunction with affordable housing projects. Total expenditures for this category shall not exceed fifteen percent (15%) of all County Contributions.

IV. APPROVAL OF CONSENT AGENDA

Chair Paul asked for a motion to approve the Consent Agenda. Vice Chair Luis made a motion to approve the Consent Agenda. The motion was seconded by Board Member Hattan. In a voice vote, all voted in favor. (Motion carried 5-0)

Minutes

1. DECEMBER 4, 2024, MEETING MINUTES

Resolutions

2.AGREEMENT – A RESOLUTION OF THE TOWN OF DAVIE COMMUNITY REDEVELOPMENT AGENCY, APPROVING THE INTERLOCAL AGREEMENT AMONG BROWARD COUNTY, THE TOWN OF DAVIE, AND THE TOWN OF DAVIE COMMUNITY REDEVELOPMENT AGENCY (CRA) REGARDING THE EXTENSION OF THE CRA AND FUNDING FOR AFFORDABLE HOUSING; PROVIDING FOR SEVERABILITY; PROVIDING FOR CONFLICT; AND PROVIDING FOR AN EFFECTIVE DATE.

V. DISCUSSION OF CONSENT AGENDA ITEMS

VI. OLD BUSINESS - NONE

VII. NEW BUSINESS - NONE

VIII. SCHEDULE OF NEXT MEETING

2. Future CRA Meetings

- Wednesday, February 5, 2025, at 6:00 p.m.

IX. CHAIR AND BOARD MEMBER COMMENTS - NONE

X. CRA DIRECTOR COMMENTS - NONE

XI. CRA ATTORNEY COMMENTS - NONE

XII. REPORT ITEMS – NONE

XIII. ADJOURNMENT

There being no further business to discuss and no objections, the meeting was adjourned at 6:16 p.m.

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Date

_____
Chair/Vice Chair
Town of Davie Community Redevelopment Agency

ATTEST:

_____
Board Secretary